

Delaware County Commissioners Meeting February 3rd 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=kxn5PeFDVpk
Publication Date	2025-02-03T16:26:56Z
Target Category	delaware_county

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Delaware County Commissioner Meeting Summary

Date: February 3, 2025

Meeting Start Time: 00:03:38 (Call to Order at 00:00:38)

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding Officer President Henry called the regular meeting of the Delaware County Commissioners to order on Monday, February 3, 2025, at 9:02 a.m., followed by the Pledge of Allegiance 00:00:38.
- **Attendance:**
 - **Present:** Commissioner President Henry, Commissioner Brand, and Commissioner Reagan.
 - **Absent:** None noted.
 - **Presiding Officer:** President Henry.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance 00:00:44. The board introduced a new "Employee of the Month" program (yielded by Commissioner Brand's parking space) and presented the inaugural award to Candy Abbott, a level-two certified DNA/R appraiser with 32 years of service 00:01:25.
 - **Approval of Minutes:** Approved the commissioner meeting minutes from January 21, 2025, and executive session minutes from January 31, 2025 00:13:36. Passed Unanimously by Roll Call Vote (00:13:43).
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4. Substantive Business & Board Action

- **00:04:36 Board Appointment: Yorktown Public Library**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Review of a letter from Yorktown requesting the reappointment of Patricia Freeman.
 - **Action & Vote Disposition:** Motion to appoint Patricia Freeman approved. Passed Unanimously by Roll Call Vote (00:05:04).
- **00:05:12 Board Appointment / Rescission: Board of Zoning Appeals (BZA)**
 - **Sponsor / Presenter:** Commissioner Brand.
 - **Deliberation Summary:** The board discovered a procedural oversight from the January 21 meeting: previous nominee Audi Barbu lives within the City of Muncie, whereas county BZA rules require appointees to live in unincorporated county territory (leaving a pool of ~27,000 residents). The board needed to formally rescind the prior appointment and keep the Democratic spot open.
 - **Action & Vote Disposition:** Motion to rescind the appointment of Audi Barbu approved. Passed Unanimously by Roll Call Vote (00:06:42).
- **00:06:57 Board Appointments: Muncie-Delaware County Economic Development Alliance (MDCEDA / ECI-RPD)**
 - **Sponsor / Presenter:** Commissioner Henry and Commissioner Brand.
 - **Deliberation Summary:** Consideration of appointments following consultation with Bill Walters. Kylen Hammer (self-appointed/nominated by Commissioner Henry) and Tracy Lutton (Vice President of Economic Development) were put forward.
 - **Action & Vote Disposition:** Motion to approve both Kylen Hammer and Tracy Lutton approved. Passed Unanimously by Roll Call Vote (00:08:32).
- **00:08:43 Board Appointment: Metropolitan Plan Commission (MPC)**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Request to reappoint Teresa Hensley.
 - **Action & Vote Disposition:** Motion to reappoint Teresa Hensley approved. Passed Unanimously by Roll Call Vote (00:09:02).

- **00:09:14 Table Business & Solar Moratorium Update**
 - **Sponsor / Presenter:** Commissioner Brand.
 - **Deliberation Summary:** Motion made and approved to take the solar moratorium off the table (**00:09:32**). Commissioner Brand reported attending 30+ meetings, visiting other counties (Huntington, Whitley, Johnson), and noting that solar companies are requesting ordinance amendments (such as battery energy storage systems). He also noted an upcoming Indiana Utility Regulatory Commission (IURC) public evidentiary hearing on March 11, 2025 (Cause No. 46177 regarding Rivian Solar LLC) (**00:10:47**).
 - **Action & Vote Disposition:** Moratorium taken off the table and extended via Ordinance 2025-05 introduction. Passed Unanimously by Roll Call Vote (**00:13:22**).
- **00:14:36 Presentation: Purdue Extension Annual Meeting**
 - **Sponsor / Presenter:** Justin Curley, Purdue Extension Office.
 - **Deliberation Summary:** Invited commissioners and the public to the Purdue Extension annual meeting on February 20 at the Academy of Model Aeronautics (dinner at 6:30 p.m., RSVP required) and distributed impact reports (**00:14:09**).
- **00:15:43 Presentation & Approval: Vitalant Blood Drive Partnership**
 - **Sponsor / Presenter:** Mike Williams, Delaware County EMS Training Officer, and Pam Cameron, HR Director.
 - **Deliberation Summary:** Proposal to partner with Vitalant (parent company of the Indiana Blood Bank) to host quarterly community and employee blood drives across county locations (EMS stations, 911 center, etc.) due to critical state blood shortages. No direct financial cost to the county aside from utilizing internal PR/social media.
 - **Action & Vote Disposition:** Motion to approve partnership and scheduling approved. Passed Unanimously by Roll Call Vote (**00:20:34**).
- **00:21:42 Bid Openings: County Highway Road Paving Projects**
 - **Sponsor / Presenter:** Highway Department / John.
 - **Deliberation Summary:** Public opening of bids for three road paving sections (Walnut Street, CR 650 South, and CR 650 East) from four contractors:
 - *Centrex Civil Contractors (Whitestown, IN):* Total bid of \$777,397.50 (**00:23:40**).
 - *Midwest Paving (Noblesville, IN):* Total bid of \$707,469.69 (**00:25:51**).
 - *Brooks Construction (Fort Wayne, IN):* Total bid of \$619,642.00 (**00:27:07**).
 - *P&B Paving (Daleville, IN):* Total bid of \$589,189.51 (**00:28:30**).
 - **Action & Vote Disposition:** Motion to take bids under advisement for review by Angie and Tommy approved. Passed Unanimously by Roll Call Vote (**00:28:52**).
- **00:28:59 Bid Openings: Highway Materials (Asphalt Mixes, Sand, Gravel, Fuel)**
 - **Sponsor / Presenter:** Highway Department / John.
 - **Deliberation Summary:** Opening of material bids (asphalt mixes, sand, gravel, fuel) from Milestone Contractors, Brooks Construction, IMI, Best-One (fuel), and P&B

Paving.

- **Action & Vote Disposition:** Motion to take material bids under advisement (with dealers permitted to inspect packages first) approved. Passed Unanimously by Roll Call Vote (00:33:20).
- **00:33:33 Contract Approval: 2025 Generator Maintenance Contract**
 - **Sponsor / Presenter:** Steve Foster, Building Superintendent.
 - **Deliberation Summary:** Annual maintenance contract with WW Williams for automatic transfer switches (ATS) and generators across three county facilities (911 Center, Justice Center, and County Building) for a flat rate of \$3,982 (unchanged for three years).
 - **Action & Vote Disposition:** Motion to approve service proposal approved. Passed Unanimously by Roll Call Vote (00:34:56).
- **00:35:04 Contract Approval: New Norm Faith Builders Ministry Agreement**
 - **Sponsor / Presenter:** Jamie Bane, Health Department Administrator.
 - **Deliberation Summary:** Agreement utilizing "Health First Indiana" funds to assist with 24/7 emergency sheltering for the homeless population, consistent with prior health department partnership contracts.
 - **Action & Vote Disposition:** Motion to approve contract approved. Passed Unanimously by Roll Call Vote (00:36:40).
- **00:36:53 Consent for Assignment: Triad Engineering Services to VS Engineering**
 - **Sponsor / Presenter:** Angie.
 - **Deliberation Summary:** Triad Engineering Services (on-call general engineering and drainage review) merged with VS Engineering, requiring written consent to assign existing on-call contracts. Annual spend averages around \$8,000<U+2013>\$15,000.
 - **Action & Vote Disposition:** Motion to accept assignment approved. Passed Unanimously by Roll Call Vote (00:39:44).
- **00:39:50 Grant Agreement: Local Roads and Bridges Matching Grant**
 - **Sponsor / Presenter:** Angie.
 - **Deliberation Summary:** Standard INDOT community crossings matching grant agreement providing up to \$524,000 in matching funds. Commissioner Brand noted pending state legislation (House Bill 1461) regarding wheel tax eligibility.
 - **Action & Vote Disposition:** Motion to approve agreement approved. Passed Unanimously by Roll Call Vote (00:40:57).
- **00:41:03 Right-of-Way Acquisition & Waiver: Bridge No. 112**
 - **Sponsor / Presenter:** Angie.
 - **Deliberation Summary:** Right-of-way purchase approvals for Bridge No. 112 (650 South at Williams Creek in Salem Township): Parcel 1 (Michael A. & Ruth C. Hinkle) and Parcel 2 (Connor Family Farm LLC), requiring an accompanying signed waiver resolution.

- **Action & Vote Disposition:** Motion to approve purchases and waiver resolution approved. Passed Unanimously by Roll Call Vote (00:42:15).
- **00:42:21 Contract Approval: Meeting Room Audio Upgrade Proposal**
 - **Sponsor / Presenter:** Mr. Slusher.
 - **Deliberation Summary:** Proposal from Point Creative for a wired audio system upgrade totaling \$3,859 to resolve chronic audio issues in the meeting room, ensuring intelligible recording for the public and AI transcription/note-taking tools.
 - **Action & Vote Disposition:** Motion to accept and approve Point Creative proposal approved. Passed Unanimously by Roll Call Vote (00:43:42).
- **00:43:53 Contract Approval: MHMt (GAAP Compliance Accounting Services)**
 - **Sponsor / Presenter:** Mr. Carroll.
 - **Deliberation Summary:** Annual contract with MHMt (Chicago, IL) for specialized public accounting services required by the state as part of annual GAAP reporting (payroll, insurance audits). Cost: \$7,800 (00:44:57).
 - **Action & Vote Disposition:** Motion to approve agreement (with future local sourcing exploration) approved. Passed Unanimously by Roll Call Vote (00:45:38).
- **00:45:46 Ordinance Introduction: Ordinance 2025-03 (Adult Drug Court Grant Fund)**
 - **Sponsor / Presenter:** Jane Miranda, Community Corrections.
 - **Deliberation Summary:** Creation of a new fund to separate existing grant funds from the Indiana Office of Court Services from Department of Correction funds to ease reporting.
 - **Action & Vote Disposition:** Motion to introduce Ordinance 2025-03 approved. Passed Unanimously by Roll Call Vote (00:46:55).
- **00:47:05 Ordinance Introduction: Ordinance 2025-04 (Veterans Treatment Court Grant Fund)**
 - **Sponsor / Presenter:** Jane Miranda, Community Corrections.
 - **Deliberation Summary:** Creation of a separate fund for the grant-funded Veterans Treatment Court.
 - **Action & Vote Disposition:** Motion to introduce Ordinance 2025-04 approved. Passed Unanimously by Roll Call Vote (00:47:20).
- **00:47:36 Department Update: Highway Projects & Safety Intersection**
 - **Sponsor / Presenter:** Tommy Humbert, Highway Department.
 - **Deliberation Summary:** Update on the 775 South and Old Road intersection project, including tree removal at Kernwood Drive for sightlines, utility coordination with AT&T/Comcast, road widening, culvert replacement, and a proposed four-way stop to curb reckless turns and head-on collisions.
- **00:47:56 Financial Claims & Payroll Approval**
 - **Sponsor / Presenter:** Board of Commissioners / Auditor's Office.
 - **Deliberation Summary:** Commissioner Brand raised concerns regarding insufficient descriptions on claims entered into the VIP system, noting upcoming VIP training and potential future rejections of poorly detailed claims. Discussion also

covered snow/ice salt expenditures (\$68,000), innkeeper's tax (\$73,345), wheel tax (\$18,177), tax sale redemptions (\$74,000), tax sale surplus (\$233,000), and a Muncie Sanitary District water/sewer billing credit discussion.

- **Action & Vote Disposition:**

- Claims (\$1,857,777.50): Approved by Roll Call Vote (00:10:32 / 01:00:32).
- Payroll (1/29/2025 for \$1,184,185.77): Approved by Roll Call Vote (01:00:50).

5. Open Public Comment / Citizen Forum

(The board recessed from 01:01:02 to 01:12:21 prior to citizen forum).

- **01:12:54 Dan Barry:** Spoke in favor of solar energy, emphasizing property tax relief for the county and steady income for farmers.
- **01:14:09 Drew Cleveland:** Indiana Farm Bureau regional manager; spoke against moratoriums, emphasizing local control, landowner rights, energy diversification, and state-level energy deficit trends.
- **01:16:54 Christian Hartzel:** Representing Renewables Ready Delaware County; spoke in favor of solar energy to supplement farm income, preserve topsoil, and support clean energy business.
- **01:18:24 Doug Marshall:** Thanked commissioners for introducing the solar moratorium and deliberating on the topic.
- **01:19:01 Charles Lancaster:** Farmer enrolled in the solar project; shared personal farming history since 1969, economic hardships, and the financial stability solar leasing provides.
- **01:22:28 Holly Hanau:** Speaking for the League of Women Voters of Muncie-Delaware County; urged the board to let the moratorium expire, adopt the current solar ordinance, and avoid new moratoriums lacking end dates.
- **01:24:35 Annette Rose:** Shared experience with a personal solar installation; advocated for clean energy to reduce fossil fuel pollution and health risks.
- **01:27:10 Mike Johnson:** Opposed industrial solar, describing it as "landscape litter" and expressing concern over community appearance and school attendance.
- **01:30:04 Vicki Gasaway:** Praised the moratorium extension; raised concerns regarding battery energy storage systems (BESS), liability waivers in solar leases, drainage issues, and property value impacts.
- **01:35:45 Tim Carter:** Expressed concerns as a landowner adjacent to the Royerton solar project, noting poor communication and lack of transparency from National Grid Renewables representatives.
- **01:37:50 Janet (-):** Rural resident; thanked the board for the moratorium extension and urged citizens to contact legislators regarding House Bill 1628 (local control).
- **01:43:09 Robert Coaster:** Recommended letting the existing moratorium expire, adopting the ordinance developed through extensive study committees, and addressing new ideas

via subsequent working groups.

- **01:42:42 Britney Mock:** Spoke against industrial solar, noting her home will be encircled by the Meta Forge project, raising concerns about quality of life and developer transparency.
- **01:44:48 Dr. Jonathan Monroe:** Physician; discussed the health impacts of air pollution from fossil fuel combustion and questioned why clean energy projects face higher scrutiny than other developments.
- **01:47:59 Autumn Grismore:** Resident of Creekwood near the Royerton project; thanked commissioners for the moratorium and the opportunity to review new BESS and industrial solar information.
- **01:49:25 Joe Russell:** Noted the repeating debate ("Groundhog Day") over energy projects and cautioned against potential legal exposure from indefinite moratoriums or blocking clean energy.
- **01:53:04 Cheryl Swingley:** Highlighted Indiana's energy insecurity, cited Randolph County's positive tax base experience with renewables, and urged moving forward with solar development.
- **01:56:11 Ryan Richards:** 10th-generation farmer; expressed concern that solar leasing inflates land and cash rent values, making it difficult for younger generations to farm.
- **01:59:22 Alan Goal:** Thanked commissioners for extending the moratorium to allow deliberate decision-making.
- **02:00:05 Jason Denat:** Suggested improving website transparency for ordinances/agendas; commented on Robert's Rules procedures and cautioned that multiple moratoriums signal the county is closed for business.
- **02:04:18 Stephen Hines:** Landowner (78 acres in Royerton project); highlighted House Bill 1628 provisions, expressed concern over county tax levy caps limiting new revenue benefits, and supported strict decommissioning rules.
- **02:06:28 Harold King:** Discussed research on property value impacts near industrial solar, advocated for good-neighbor compensation plans, and suggested a one-mile buffer around small town limits.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Commissioner Brand proposed establishing a focus group/study committee to address upcoming property tax relief legislation (Senate Bill 1), potential impacts of the 32.5-hour county work week, and clearer eligibility criteria for take-home vehicles (**02:09:42**).
 - Next Commissioner Meeting: Tuesday, February 18, 2025, at 9:00 a.m. in the meeting room (**02:14:51**).

- **Adjournment:** Motion to recess/adjourn made by Commissioner Reagan, seconded by Commissioner Brand. Approved by Voice Vote (02:14:59).

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